BAY CITY COMMERCIAL VENTURES CORP.

Ayala Malls MANILA BAY

19 January 2026

MERCHANT'S COPY

CONTRACT OF LEASE RENEWAL

Mr. Adrian P. Dimacali
Cafe Mary Grace Kiosk
Mary Grace Foods Inc.
Ayala Malls Manila Bay
Parañaque City

Dear **Mr. Dimacali:**

This refers to your lease for the operation of your "**CAFE MARY GRACE KIOSK**" outlet, which expired last **30 September 2025.**

We shall be glad to renew your lease, subject however to the following amendments and your compliance with the conditions set forth herein:

1. **TERM**: Your lease shall be renewed from **01 October to 31 December 2026** (the "Renewed Term").

2. **AREA**: **6.00** square meters.

3. **RENT**: Your monthly rent per square meter for the Renewed Term shall be equivalent as follows:

	Period	Rate per sqm
From	**01 October 2024 to 30 September 2025**	**Php5,250.00**
To	**01 October to 31 December 2026**	**Php5,408.00**

*plus the applicable VAT

4. **ADDITIONAL SECURITY:** For the renewed term, you shall deliver the Additional Security of **Php5,688.00** as required under the Contract of Lease / Term Sheet on or before the date stated in your statement of account.

New Security Deposit	**Php**	**194,688.00**
Less: Existing Security Deposit	**Php**	**189,000.00**
Additional	**Php**	**5,688.00**

5. **DEFINITION OF GROSS SALES**: "Gross Sales" shall mean the selling price or total consideration for the sale, whether in cash or on credit, or partly for cash and partly on credit, of goods, wares, food, drinks or other merchandise by the LESSEE, its Consignor, Sub-Lessee or any party in, upon or from the Leased Premises, and the total consideration for the performance of any service or act within the Leased Premises, and the use of any of the facilities thereof, accruing to the LESSEE, its Consignor, Sub-Lessee or any party while remaining or occupying any part of the Leased Premises, regardless of whether such selling price or consideration shall be actually collected or received by the LESSEE, its Consignor or Sub-Lessee. The term shall include cash overages; receipts from gift-wrapping or other services; sale of promotional items; monthly gains from foreign exchange transactions (net of losses to the extent of the gain); deposits not refunded to purchasers; charges for sales on credit; charges for services rendered by other stores or offices of the LESSEE, its Sub-Lessee or Consignor, or for goods, food, wares, drinks, or other merchandise directly or indirectly ordered from or caused by the LESSEE's or Sub-Lessee's or Consignor's establishment in the Leased Premises; online sales or orders received from online platforms which are fulfilled in the Leased Premises whether for delivery or customer pick-up; reimbursements received for damaged goods; local taxes or any other tax and other miscellaneous income. The term shall exclude returns and refunds; recoveries from bad debts on which rent had previously been paid; sales discounts (provided these are separately recorded in the sales invoices and books of accounts); the amount of the value-added tax, sales tax or other similar taxes imposed by the national government as determined under applicable law, when these are recorded separately in the books of accounts of the LESSEE, its Sub-Lessee or Consignor and/or separately billed to their respective customers; service charges actually distributed; and the proceeds from the sale of the LESSEE's, its Sub-Lessee's or Consignor's used fixtures and office equipment which do not form part of their respective inventory and stock-in-trade. There shall be no adjustment of Gross Sales to take into account cash shortages and losses arising from foreign exchange transaction in excess of gain.

6. **CONDUCT OF BUSINESS:** The LESSEE shall at all times, during the term of this lease, conduct its business in a reputable manner in accordance with the urban design quality of the Commercial Center and the business and operating standards of a first-class commercial center. LESSEE shall comply with all laws, ordinances, rules and regulations and issuances promulgated from time to time by national and/or local governments, as well as

government agencies and other regulatory bodies. All the government permits, licenses, authorizations, registrations or requirements which are necessary or appropriate for the conduct of business by the LESSEE in the Leased Premises shall be obtained by the LESSEE and shall be maintained by the LESSEE for the duration of the lease term, and all costs and expenses to be incurred in connection with these permits, licenses, authorizations, registrations or requirements shall be for the account of the LESSEE.

7. LIEN (to replace Personal Property Security Act):

Unpaid rent and charges payable by the LESSEE to the LESSOR under this Contract shall constitute a preferred lien upon all property found within the Leased Premises to secure payment of all claims LESSOR may have against the LESSEE. For this purpose, LESSOR is hereby authorized to prevent removal of the said properties from the Leased Premises or demand their return from any possessor thereof in the event that the LESSEE shall default in any of its payment obligations under this Contract of Lease, in addition to the exercise of its rights under Article 11 (Termination and its Consequences).

8. SALES MONITORING:

The LESSOR will adopt an electronic recording and/or processing system to monitor the sales and operations of the tenants in the Commercial Center as prescribed by the LESSOR in Annex B. The LESSEE agrees, and shall ensure that its Sub-Lessees and Consignors agree, to use or install in the Leased Premises or portion thereof such necessary sales monitoring equipment with communication capability and other equipment as may be required by the LESSOR to be connected to the system, and to adopt such recording and documentation methods and procedures which shall be compatible with such system. The cost and expense of installing such system or of upgrading the present system of the LESSEE, its Sub-lessees or Consignors to a level which is at least equal to or compatible with such system shall be for the account of the LESSEE, its Sub-lessees or Consignors (as the case shall be). It is understood that the LESSEE shall, and shall ensure that its Sub-Lessees shall, coordinate with the LESSOR on the selection and installation of all sales monitoring equipment.

The LESSEE shall actively involve the LESSOR, and shall ensure that its Sub-Lessees and Consignors likewise actively involve the LESSOR, and the LESSOR shall actively participate, in the installation of an electronic recording and/or processing system within the Leased Premises for the purpose of providing the LESSOR direct access to the Point of Sale and Electronic Cash Register terminals of the LESSEE, its Sub-Lessees and Consignors. The terms "Point of Sale" and "Electronic Cash Register" shall mean the system by which every sale of the LESSEE or each of its Sub-Lessees or Consignors is recorded and accepted.

9. SALES MONITORING (ANNEX B):*

The LESSEE shall, at its own cost, install, connect and maintain a Point of Sale (POS) system within the Leased Premises as specifically described in the House Rules and which must be certified and approved by the LESSOR. The LESSEE shall install upgrades or attach such software, hardware or device in the POS system to facilitate transmission of sales and other information as may be required by the LESSOR. The LESSEE shall likewise ensure compatibility of the POS with the LESSOR's sales monitoring requirements. Without limiting the generality of the foregoing, the LESSEE shall secure the POS system, including upgrades and attachments (if any), from the list of accredited POS providers of the LESSOR attached hereto as Attachment 1 to the Annex B of the Contract of Lease, and enter into a maintenance agreement with the accredited POS provider for the entire duration of this lease. The LESSEE shall furnish a copy of the maintenance agreement to the LESSOR as well as its subsequent renewals.

The LESSOR or its appointed auditor shall have the right to audit the books and records of LESSEE to verify that the POS data or gross sales reported to LESSOR accurately reflect the actual sales made by LESSEE at the Leased Premises.

In addition, the LESSEE shall allow the LESSOR to conduct the "Z" Reading of the cash register machine or point-of-sale terminal. The conduct of "Z" reading will be consistent with the store operating hours of the Commercial Center.

10. PRESERVATION OF RECORDS: The LESSEE shall maintain books of accounts and other business records and shall preserve the same for the purpose of the LESSOR's audit. In this regard, the LESSEE shall coordinate with the LESSOR's Auditing Department in order to set up an accounting system which will accurately reflect the transactions effected within the Leased Premises as basis for determining the rent due from the LESSEE. The LESSEE shall keep, and shall ensure that its Sub-Lessees and Consignors keep, all sales invoices (bearing only the name and address of the branch of the LESSEE operating in the Leased Premises), sales summaries, official receipts, cash register tapes, books of accounts, such as but not limited to, the general ledger, cash receipts books and sales books, cash disbursement books, suppliers' invoices, consolidated books of account, supporting papers, Gross Rental Income, Consignment Contracts, Sub-leases and other business records the LESSOR's authorized representatives may deem reasonably necessary to determine the LESSEE's, each Sub-Lessee's and Consignor's Gross Sales and/or Gross Consignment Income. The LESSEE shall further be required to assign separate receipt booklets for each of its Sub-Lessees and Consignors in order to segregate the records of sales pertaining to each of them. These records shall be preserved for a period of three (3) years. The LESSEE shall allow, and shall ensure that its Sub-Lessees and Consignors allow, the authorized agents of the LESSOR to enter into any part of the Leased Premises at all reasonable times during the term of this lease and to examine and photocopy all documents and records specified herein, and other pertinent records that are reasonably necessary to accurately determine the basis of rentals herein agreed upon, all with the least inconvenience and/or disturbance to the LESSEE, its Sub-Lessees, Consignors or their respective operations. For this purpose, the LESSEE undertakes to make said records available to the authorized agents of the LESSOR at the Leased Premises during office hours on the date scheduled by the LESSOR, or any postponement or resetting thereof. The LESSOR may require the LESSEE to send the documents

and records to the LESSOR if said records are maintained elsewhere. In the event no photocopying machine is available within the Leased Premises, the LESSEE shall allow, and shall ensure that its Sub-Lessees and Consignors allow, the LESSOR's representative to bring out the necessary documents from the Leased Premises for photocopying; provided that, the LESSOR's representative shall be accompanied by the respective personnel of the LESSEE, its Sub-Lessees or Consignors. Any record or information thus obtained shall be considered confidential, material and important and, unless the LESSOR is required by any proper government agency or legally obliged to do so, the LESSOR shall not at any time or in any manner reveal or disclose such record or information without permission from the LESSEE.

In case the LESSEE has other branches, separate records of the sales of such other branches (including without limitation, receipts and books of accounts) which were derived from, or which were effected due to the LESSEE's operations in the Leased Premises shall be maintained at all times in the Leased Premises.

11. COMPLIANCE WITH RULES: The LESSEE shall obey and comply with the Construction Guidelines/Tenant Fit-Out Guidelines and House Rules, and with such rules and regulations or circulars as may from time to time be imposed, adopted, introduced or amended by the LESSOR, the person or firm appointed under Article 3.4(g) or the appropriate government agency. The LESSEE acknowledges the right of the Lessor to impose and amend monetary penalties on violations of such rules and regulations, including the Table of Penalties attached hereto as Schedule A, subject to prior notice.

12. CONDITION OF THE LEASED PREMISES: The Lessee shall maintain the Leased Premises in good aesthetic condition at all times in line with the operating standards of a first-class commercial center. The Lessor shall have the right to require the Lessee to renovate or implement restoration works, if in the reasonable discretion of the Lessor, the Leased Premises is already outdated, dilapidated, and not aligned with the overall design scheme of the commercial center.

The LESSEE agrees to return and surrender the Leased Premises at the expiration or termination of the term of this lease (subject to any extension as may be granted at the sole discretion of the LESSOR) in the same condition as it was found at the commencement of this lease (reasonable wear and tear excepted) or in strip-to-bare condition, without any delay whatsoever. All alterations, additions, improvements, movable fixtures and enhancements made or introduced by the LESSEE in the Leased Premises (including the posters, signages decoration or advertising matters in the Leased Premises or any part of the Commercial Center) shall be demolished, removed or dismantled by the LESSEE, at its own cost, in a strip-to-bare condition and in such a way that it will not cause water leaks, power interruption, damage or destruction to the Leased Premises or any improvements introduced by the LESSOR therein (reasonable wear and tear excepted). Rectification of any damaged portion of the Leased Premises due to the demolition, removal or dismantling shall be at the expense of the LESSEE.

In the event the LESSEE fails to return and surrender the Leased Premises in accordance with this clause, the LESSOR shall have the right but not the obligation to demolish, remove or dismantle all alterations, additions, improvements, movable fixtures and enhancements made or introduced by the LESSEE in the Leased Premises and charge the LESSEE the costs thereof. Furthermore, should the LESSEE initiated the demolition, removal or dismantling and the same was not completed by the expiration or termination of the term of this lease, the LESSEE shall be charged a sum equal to twice the rental to be paid by the LESSEE to the LESSOR for the period during which the LESSEE retains possession of the Leased Premises and fails to restore and vacate the Leased Premises accordingly, which applicable rent shall be automatically deducted from the additional security provided by the LESSEE under Article 4.4.

Notwithstanding the foregoing, the LESSOR shall have the sole option to allow the LESSEE to return and surrender the Leased Premises as-is and retaining all alterations, additions or improvements made or introduced therein without additional compensation due the LESSEE.

All keys giving access to all parts of the Leased Premises and/or the Common Areas (as applicable) shall be returned to the LESSOR.

13. HOLD-OVER: If the LESSEE fails to return the Leased Premises to the LESSOR in accordance with Article 7.19, the LESSEE shall pay the LESSOR, as damages, a sum equal to twice the rental to be paid by the LESSEE to the LESSOR for the period during which the LESSEE retains possession of the Leased Premises. The exercise by the LESSOR of its rights under this Article shall not be interpreted as a grant of permission to the LESSEE to continue in possession of the Leased Premises beyond the period allowed herein, and the damages due to the LESSOR hereunder shall be in addition to the damages which may become due to the LESSOR under Article 11.2 (Consequences of Default).

If the Leased Premises are not surrendered within the period allowed herein, the LESSEE shall be responsible to the LESSOR for all damages which the latter may suffer by reason thereof and will indemnify the LESSOR against any and all claims made by any succeeding lessee, resulting from the delay in delivering possession of the Leased Premises to such succeeding lessee, to the extent that such delay is occasioned by the failure of the LESSEE to surrender the premises on time. The LESSOR shall also be entitled to exercise the remedies specified in Article 11.2 (Consequences of Default) hereof.

14. EVENTS GIVING RISE TO DEFAULT AND TERMINATION: The following shall be added to the list of events of default under the Contract of Lease: xxx the failure of the LESSEE to comply with the construction timelines set forth in Schedule B, including but not limited to the submission of plans provided in Schedule C.

15. REMEDIES ARE CUMULATIVE: All remedies of the LESSOR set forth in this Contract of Lease are non-exclusive and cumulative with any other remedies available at law or equity.

16. **LAW AND VENUE APPLICABLE:** This Contract shall be construed, interpreted and governed by the laws of the Philippines. Each party irrevocably submits to the exclusive jurisdiction of the courts in Makati City for the purpose of enforcing any right or obligation under or arising out of this Contract.

17. **CONFIDENTIALITY:** The LESSOR and LESSEE agree that any exchange of information or documents among the parties in connection with this Contract, including the terms provided hereunder Contract, shall be treated with strict confidentiality and no such information or documents shall be released without the prior written consent of the other Party, unless such information is required to be disclosed by any law, regulation, court order, or other competent authority. For the avoidance of doubt, certification as to the status of this lease by the LESSOR, as such will be provided to any governmental authority upon the latter's request, shall not be deemed a violation of this clause.

18. **INSURANCE (ANNEX B):** Prior to construction, LESSEE shall be required to secure appropriate Contractors All Risks Insurance based on the full amount of the construction (with comprehensive third party liability extension at a minimum amount of P2,000,000) for the duration of the entire construction, demolition or renovation works.

Prior to start of operations, LESSEE shall be required to secure: (1) Commercial or Property All Risks Insurance with business interruption extension and (2) Comprehensive General or Third Party Liability cover (i.e. fire, water damage, food poising) with a minimum limit of P2,000,000 to be renewed yearly for the entire duration of the lease. The insurance coverage shall be obtained by the LESSEE from BPIMS or from any Ayala Land Inc. (ALI) accredited insurance companies and shall furnish the LESSOR with copies thereof as well as its subsequent renewals.

Further, the LESSEE undertakes to make all records pertaining to such insurance (including proof of payment) available to the authorized agents of the LESSOR at the Leased Premises for review during office hours on the date scheduled by the LESSOR, or any postponement or resetting thereof.

19. **UPDATING OF MERCHANT INFORMATION AND DOCUMENTS (ANNEX B):** The LESSEE agrees to submit such documents and/or information as may be reasonably required by the LESSOR pursuant to its Know-Your Customer (KYC) process from time to time. In addition, the LESSEE shall directly and personally inform the LESSOR in writing of any changes in the Merchant Information Sheet or its lease documentary requirements such as, but not limited to, its DTI/SEC/BSP/AMLC registrations. It is understood that the LESSOR shall have the right to solely rely on the information provided by the LESSEE and shall not be liable for any error, non-communication or miscommunication in the information given. In recognition that the LESSOR is subject to and required to comply with legal, regulatory and/or other requirements in respect of Anti-Money Laundering, Counter-Terrorism Financing, KYC as well as other laws and regulations which now or in the future may come into effect (the "Reportorial Requirements"), the LESSEE fully acknowledges that this lease shall be subject to the Reportorial Requirements. The LESSEE consents to the sharing of its personal information, including KYC findings and conduct of verification, among the LESSOR and its Affiliates owning and/or operating other Ayala Malls and/or to governmental authorities and regulatory bodies.

Except as provided above, all other terms and conditions of our Contract of Lease shall remain the same. Terms used herein shall have the same meaning as that provided in our Contract of Lease.

Kindly indicate your conformity below and return to us the original and one (1) copy of this letter **not later than 19 FEB 2026**. Should we not receive a reply from you with regard to this matter on or before the said date, we will deemed it to mean that you have ACCEPTED and AGREED to all the terms and conditions herein stated. This letter, when signed or deemed accepted by you shall constitute an amendment and addendum to our Contract of Lease and shall form an integral part thereof.

As our valued partner, we take utmost priority in keeping your account updated and ensuring that our correspondences reach you as intended. In this regard, kindly fill up the attached Merchant Information Sheet and return to us together with this renewal letter.

Sincerely,

AILEEN Q. PESCADOR
Attorney-in-Fact
Bay City Commercial Ventures Corp

KATRINA ANGELA S. DE LA PEÑA
Attorney-in-Fact
Bay City Commercial Ventures Corp.

CONFORME:
Mary Grace Foods Inc.

Date: 21 Apr. '26

Mr. Adrian P. Dimacali
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